

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Death Reference No.09 OF 2018

The State

... Petitioner

-Versus-

Abdur Sabur

...Condemned-prisoner

with

Jail Appeal No.265 OF 2021

Abdur Sabur

.....Convict-appellant

-Versus-

The State

... Respondent

Ms. Momotaz Begum, State Defense Lawyer

...for the Convict-appellant Abdur Sabur

Mr. Sk. Faruque Hossain, Advocate

.....For the Convict appellant Abdur Sabur in
Jail Appeal No.265 of 2021.

Mr. Sujit Chatterjee, DAG with

Ms. Farhana Afroze Runa, A. A. G with

Mr. Abdul Aziz Masud, A. A. G. with

Md. Shamim Khan, A. A. G

... For the State.

Heard on 11.01.2024 and Judgment on 18.01.2024.

S M Kuddus Zaman,J:

This Death Reference under section 374 of the Code of Criminal Procedure, 1889 (hereinafter referred to as the Code) has been submitted by the learned Additional Session Judge, 4th Court, Chattogram for confirmation of the sentence of death passed on 30.01.2018 against condemned accused Abdur Sabur in Session Case No.310 of 2006 arising out of Bashkhali Police Station Case No.11(2)2003 corresponding to G. R. No.24 of 2003 under section 302 of the Penal Code, 1860.

Being aggrieved by above judgment and order of conviction and sentence dated 30.01.2018 passed by the learned Additional Sessions Judge, 4th Court, Chattogram in Session Case No.310 of 2006 arising out of Bashkhali Police Station Case No.11(2)2003 corresponding to G. R. No.24 of 2003 the condemned accused, namely, Abdur Sabur preferred Jail Appeal No.265 of 2021.

Above Death Reference and Jail Appeal having arisen out of the same judgment and order of conviction and sentence dated 30.01.2018 passed by the learned Additional Session Judge, 4th Court, Chattogram in Session Case No.310

of 2006 and involved identical questions laws and facts both above Death Reference and Jail appeal are heard together and being disposed of by this single judgment.

Facts in short are that P.W.1 Mozaher Ahammad lodged an oral ejahar on 24.02.2003 at 14.10 hours with Bashkhali Police Station alleging that on 24.02.2023 at 2.30 AM his nephew Mofizur Rahman took refuge in his ghor and stated that he was attacked by accused Dudu, Jasim, Nurussofa, Abu Taher, Forkan and others.. On hearing of altercations of above accused persons with his brother Jamir Uddin and nephew Saidul Haque he and his wife victim Delowara Begum appeared in front of the door of his dwelling ghor. Accused Abdur Sabur fired a gun shot at him but he tactfully sat down and the cartridge hit left side of the neck of his wife victim Delowara causing her death. He identified accused persons in the light of electricity and moon. Above Mofizur Rahman, Jamir Uddin, Abdul Khaque, Saidul Haque, Abdul Jabbar and Morsheda Begum saw above occurrence.

The investigation of the case was assigned to P.W.9 Solaiman Chowdhury who in course of investigation visited

the place of occurrence, prepared a sketch map of the same along with an index thereof, prepared inquest report of the dead body of victim Delowara and seized alamots by dint of seizure list and recorded statements of 04 (four) P.Ws namely Khaleque, Jamir, Abu Salah and Abdur Sabur. The witness proved the sketch map and index of the place of occurrence, the inquest report of the dead body of victim Delowara, seizure list and his signatures on above documents. He handed over the case record to the officer in charge on 28.03.2003 due to his transfer. Above investigation was concluded and charge sheet was submitted by 02(two) subsequently appointed investigating officers who were not examined at trial.

The condemned accused, namely Abdur Sabur was arrested by police but after obtaining bail on 10.10.2012 he fled away and he was tried in absentia and subsequently he was arrested on 17.08.2021 pursuant to the committal warrant of this case.

To bring home the charge levelled against 11 (eleven) persons under section 302/34 of the Penal Code the

prosecution has examined 07 (seven) witnesses and tendered 02 (two) and produced and proved documents which were marked as Exhibit Nos.1-7 and materials Exhibits No.I-V serious respectively.

P.W.1 Mozaher Ahammad is the informant of this case and husband of victim Delowara Begum. He stated that on 7th of Falgun, 2003 at 2.30 AM accused Abdur Sabur came to his home and fired a gun shot at the chest at his wife Delowara Begum causing her death. He did not know why accused Sabur fired above gun shot at his wife. Accused Sabur, Abu Taher and Jasim came to the courtyard of his house and he opened the door. Accused Sabur fired a gun shot at him from a distance of around 7 yards but he sat down and the bullet hit the chest of his wife. Accused Mofiz Badday went to the Police Station and prepared the documents of this case and he gave L.T.I on the same. This case was filed by accused Mofiz against accused persons. He did not file this case against the all the accused persons. The witness proved the FIR and the signature on the same which were marked as Exhibit Nos.1 and 1/1 respectively.

The witness was declared hostile by the State and cross examined. In cross examination he stated that the ejahar of this case was written according to the statement of accused Mofiz and he gave L.T.I on the ejahar on the direction of accused Mofiz.

In his cross examination by the defence he denied that he filed this false case against the accused persons. The accused persons are inhabitants of this locality and he did not implead accused Munshi Mia, Ruhul Amin, Nurussofa, Abdul Khaleque, Khalilur Rahman as accused in this case. Above accused persons were not connected with the murder of his wife. He further stated that he had no enmity with accused Sabur before the murder of his wife. There was no light in his home at the time of the occurrence.

P.W.2 Fazal Ahammed stated that about 7-8 years back at 2.30 AM the wife of the informant was murdered by gun shot. At the time of above occurrence he was in his home. He did not see above occurrence of murder of the wife of the informant. He heard that accused Sabur fired a gun shot at the wife of the informant causing her death. In cross examination

he could not recollect the name of the person from whom he heard the name of accused Sabur.

P.W.3 Ibrahim stated that about 7-8 years back the wife of the informant was murdered by gun shot but he does not know who fired above gun shot. Accused Mofiz arranged the occurrence of above murder of the wife of the informant. In cross examination he stated that he could not recollect the name of the person from whom he learnt that accused Mofiz organized the murder of victim Delowara.

P.W.4 Abul Kashem stated that about 8-10 years back he heard that a dacoity was committed in the house of the informant and his wife was murdered by gun shot. In cross examination he stated that he did not see the occurrence of decoity or the murder of victim Delowara. Nor he knew who fired gun shot at the wife of the informant.

P.W.5 Abdus Sabur stated that about 7-8 years back in the night he heard the sound of gun shot and went to the house of the informant and found that victim Delowara had died of gun shot. In the night of the occurrence there was a

dacoity in house of the informant and the dacoits fired a gun shot causing death of victim Delowara.

P.W.6 Abdul Jabbar was tendered by the prosecution whose cross examination was declined by the defence.

P.W.7 Jamir Uddin was also tendered by the prosecution who stated in cross examination that in the night of the occurrence a dacoity was committed in the house of the informant and his wife died of gun shot.

P.W.8 Abdul Malek is the brother of the informant who stated that about 8-10 years back at 2.30/3.00 AM he heard that victim Delowara was murdered by gun shot by the dacoits. He further stated that he did not know who fired gun shot causing death of victim Delowara. The cross examination of the witness was declined by the defence.

P.W.9 Solaiman Chowdhury is the first investigating officer of this case who stated that on 24.02.2003 the investigation of the case was assigned to him. He prepared inquest report of the dead body of victim Delowara Begum and sent above dead body for post mortem examination and seized blood stained Sari, Blouse and Petticoat of victim

Delowara by a seizure list. He prepared sketch map of the occurrence place along with an index thereof. He examined four prosecution witnesses namely Abdul Khaleque, Jamir Uddin, Abu Salah and Abdus Sabur under section 161 of the Code of Criminal Procedure. Due to his transfer he handed over the case docket to the officer in charge of above police station on 18.04.2003. The witness proved the FIR, seizure list, sketch map along with inquest report of the dead body of victim Delowara and his signatures on above documents which were marked as Exhibit Nos.2-7 series. He also proved the seized blood stained Sari, Blouse and Petticoat of victim Delowara which were marked material as Exhibit Nos.I-V series. In cross examination he denied that he did not conduct the investigation of this case properly and no accused person was involved in the commission of murder of victim Delowara.

Above is all about the evidence oral and documentary adduced by the prosecution to prove the charge levelled against 11 (eleven) accused persons namely (1) Abdur Sabur, (2) Abu Taher, (3) Jasim (4) Forkan, (5) Jamal Uddin, (6)

Khalilur Rahman, (7) Munshi Miah, 8) Nurussofa, (9) Ruhul Amin, (10) Mofizur Rahman and (11) Khaleque Fakir.

Mr. Sujit Chatterjee learned Deputy Attorney General submits that in this case the informant mentioned the names of 09 (nine) accused persons in the ejahar and during investigation the names of other two accused persons namely Mofizur Rahman and Abdul Khaleque were found to be involved in the commission of murder of victim Delowara. Above Abdul Khaleque is the brother of the informant and Mofiz is the nephew of the informant. They were mentioned as witnesses in the ejahar but there involvement in the murder of Delowara was subsequently found in the investigation. In the ejahar and in his evidence in court informant Mojaher who is the husband of victim Delowara has consistently stated that accused Abdur Sabur fired the gun shot causing the death of victim Delowara. Above evidence of P.W.1 has been corroborated by the circumstantial evidence of recovery of spent cartridge from the occurrence place and inquest report (Exhibit No.7) and the unexhibited post mortem report of victim Delowara. P.W.2 Fazal Ahammed heard that accused

Abdur Sabur had fired gun shot at victim Delowara causing her death. Above mutually corroborative oral evidence P.W.1 Mojaher and P.W.2 Fazal and above mentioned documentary evidence against accused Abdur Sabur have been fortified by the fact of his absconction from trial after getting bail from the court.

On consideration of above oral documentary and circumstantial evidence the learned Additional Sessions Judge has rightly convicted accused Abdur Sabur and sentenced him to death which calls for no interference.

Ms. Momotaz Begum learned State appointed Defense Lawyer for appellant Abdur Sabur submits that while giving evidence a P.W.1 Mozaher who is the informant of this case and husband of the victim did not support the the prosecution case as stated in the ejahar and stated that above ejahar was in fact lodged by accused Mofiz. The State declared him hostile and cross examined him. As such no reliance can be placed on the evidence of P.W.1 Mozaher who claimed to be an eye witness of the occurrence.

Accused Sabur did not make any confession under section 164 of the Code of Criminal Procedure to a Judicial Magistrate. There is no other legal evidence on record implicating accused Sabur with the murder of victim Delowara. Mere escape from trial does not provide valid presumption as to the guilt of an accused. The learned Additional Session Judge has committed serious illegality in understanding the legal value of the evidence adduced by the prosecution and most illegally convicted accused Sabur under section 302 of the Penal Code which is not tenable in law.

Mr. Sk. Faruque Hossain learned Advocate appointed by the Legal Aid Committee to defend appellant Abdur Sabur in Jail Appeal No.265 of 2021 submits that the prosecution could not prove that victim Delowara was murdered by a gun shot since no gun was recovered nor the post mortem report of victim Delowara was proved at trial. P.W.2 Fazol Ahammed claimed that he heard that accused Sabur fired gun shot at victim Delowara but in cross examination he could not mention the name of the person from whom he heard the name of accused Sabur. No other prosecution witness has

uttered the name of accused Sabur as an accomplice in the commission of murder of victim Delowara. On the contrary P.W.4 Abul Kashem, P.W.5 Abdus Sabur, P.W.7 Jamir Uddin and P.W.8 Abdul Malek have given a completely different narrative as to the occurrence of the murder of victim Delowara. Above prosecution witness stated that Delowara was murdered in course of commission of dacoity in the house of the informant by gun shot fired by the dacoits. As such the prosecution failed to prove by legal evidence the involvement of accused Sabur in the commission of murder of victim Delowara. But the learned Additional Sessions Judge miserably failed to appreciate above evidence on record properly and most illegally convicted accused Abdur Sabur under section 302 of the Penal Code which is not tenable in law. The learned Advocate lastly submits that the Death Reference is liable to be rejected and the Jail Appeal deserves to be allowed and accused Sabur may be acquitted of the charge levelled against him under section 302 of the Penal Code.

We have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record including the ejahar, evidence of 9 prosecution witnesses, exhibited documents and others materials son record.

At the very outset ejhar of this case was lodged by P.W.1 Mozaher Ahammed who is the husband of victim Delowara. He has claimed to be an eye witness of the occurrence of murder of his wife. In the ejahar he has further mentioned the names of as many as 6 (six) persons, namely Mofizur Rahman, Jamir Uddin, Abdul Khaleque, Saidul Hauque, Abdul Jabbar and Morsheda as eye witnesses of above occurrence.

But above mentioned Mofizur Rahman and Abdul Khaleque who were the nephew and brother respectively of the informant were made accused persons in the charge sheet and on conclusion of trail they were acquitted.

Above mentioned Saidul Haque and Morsheda Begum were not examined by the State at trial to prove the charge levelled against the accused Sabur under section 302 of the Penal Code. No explanation has been provided by the State as

to non examination of above two important prosecution witnesses.

Above mentioned Jamir Uddin and Abdul Jabbar were mere tendered by the prosecution at trial and their cross examination was declined by the defence. It is not understandable as to why above two important prosecution witnesses who allegedly saw the occurrence were not examined by the prosecution.

In this case the prosecution did not make any endeavor to prove the post mortem examination report of the dead body of victim Delowara. The learned public prosecutor could easily produce above important piece of document in the evidence by submission of a petition under section 509A of the Code of Criminal Procedure.

It is to be mentioned that in any criminal case the onus to prove the place, date, time and manner of the occurrence solely lie with the prosecution and that onus never shifts. Besides the State needs to prove the complicity of the accused person in the commission of the alleged offence. To prove the cause or manner of murder of victim Delowara the

prosecution was required to prove the post mortem report. When a document is exhibited by the prosecution defence gets an opportunity to cross examine the person who produces the document to make out the defence case as to above document. Since the post mortem report of the dead body of victim Delowara was not unexhibited in this case we cannot use above unexhibited document against accused Abdur Sabur.

As mention above in the ejahar and in his evidence as P.W.1 informant Mozaher has stated that hearing of altercations with his brother and others he and his wife opened the door of his dwelling ghor and accused Adbur Sabur fired a gun shot causing murder of his wife Delowara.

But P.W.8 Abdul Malek who is the brother of informant and who lives in the same house has given a different narrative of above occurrence. He stated that a band of docoits consisting of 100/150 persons committed docoity in the house of the informant and victim Delowara was murdered by the gun shot of the docoits. Above narrative of P.W.4 Malek has been supported by P.W.4 Abul Kashem, P.W.7 Jamir Uddin and P.W. Abdul Malek in their respective evidence. No

prosecution witness has supported the narrative of the occurrence as has been stated by P.W.1 Mozaher in the ejahar and in his evidence.

P.W.1 Mozaher has stated in his evidence that he saw accused Abdur Sabur fired a gun shot causing death of his wife in the dark of the night. But he did not mention the means of recognition of the accused in the night. In cross examination he stated that there was no light in the occurrence house at the time of the occurrence.

It is well settled that if any witness to a criminal case a claim to have recognized any accused person in the dark of the night he must mention the means of the recognition and the prosecution will have to prove the means of recognition at trial. The occurrence of murder of victim Delowara took place any time during to 2.00 AM to 2.30 AM in the dark of the night but in his evidence in court P.W.1 Mozaher could not even mention his means of recognition of accused Sabur. Moreover P.W.1 Mazaher did not support the prosecution case as set out in the ejahar in his evidence in court. P.W.1 Mozaher disowned the lodging of the ejahar of this case. As

such the state declared P.W.1 Mozaher as a hostile witness and cross examined him. As such above evidence of P.W.1 Mozaher loses all credibility.

Moreover only P.W.2 Fazol Ahammed stated that he heard that accused Abdur Sabur fired gun shot causing death of victim Delowara. But in cross examination he could not mention the names of the persons from whom he heard the name of accused Abdur Sabur. As such above evidence P.W.2 Fazol Ahammed fails to pass test of the cross examination and fails to get the status of legal evidence.

No other prosecution witnesses namely P.W.3 Ibrahim, P.W.4 Abul Kashem, P.W.5 Abdur Sabur, P.W.6 Abdul Jabbar, P.W.7 Jamir Uddin, P.W.8 Abdul Malek and P.W.9 Solaiman Chowdhury has mentioned the name of accused Abdur Sabur in their respective evidence let alone give evidence in support of his complicity in the commission of murder of victim Delowara. As such this is a case of no legal evidence to support the charge made under section 302/34 of the Penal Code, 1860 against accused Abdur Sabur.

The prosecution has failed to produce a single piece of legal evidence at trial to support the complicity of accused Abdur Sabur in the commission of murder of victim Delowar by gun shot. But the learned Additional Sessions Judge has miserably failed to appreciate the legal value of the evidence adduced by the prosecution at trial and most illegally convicted accused Abdur Sabur under section 302 of the Penal Code, 1860 and sentenced him to death which is unlawful and not tenable in law.

In above view of materials on record we are unable to find any substance in this Death Reference which is liable to be rejected and the Jail Appeal preferred by accused Abdur Sabur deserves to be allowed.

In the result, Death Reference No.09 of 2018 is rejected and the Jail Appeal No. is allowed.

The impugned judgment and order of conviction and sentence dated 30.01.2018 passed by the learned Additional Session Judge, 4th Court, Chattogram in Session Case No.310 of 2006 arising out of Bashkhali Police Station Case No.11(2)2003 corresponding to G. R. No.24 of 2003 against

accused Abdur Sabur under section 302 of the Penal Code is hereby set aside.

Accused Abdur Sabur is acquitted of the charge levelled against him under section 302 of the Penal Code, 1860 in Session Case No.310 of 2006 arising out of Bashkhali Police Station Case No.11(2)2003 corresponding to G. R. No.24 of 2003.

We are directing that accused Abdur Sabur, son of Kabir Ahammad be set at liberty at once if he is not wanted in connection with any other case.

Let the lower court's record along with a copy of this judgment be transmitted down at once.

Md. Ali Reza, J:

I agree.

Md. Kamrul Islam
Assistant Bench Officer